

**IN THE COURT OF COMMON PLEAS, GALLIA COUNTY, OHIO
GENERAL DIVISION**

STATE OF OHIO

CASE NO. 24CR000122

Plaintiff,

JUDGE MARGARET EVANS

-VS-

MICHAL PAIGE HUCK

Defendant.

SENTENCING JUDGMENT ENTRY

This matter came before the Court for sentencing on September 5, 2024. Present at the hearing were Mark R. Weaver, Special Prosecuting Attorney, representing the State of Ohio; and the Defendant, represented by Attorney Britt T. Wiseman. Notice was given to all parties. The Defendant was afforded all rights pursuant to Criminal Rule 32.

Procedural background

The Defendant previously entered a guilty plea to and was found guilty of the following counts:

Count	O.R.C Section	Charge Description	Level
2	2907.03(A)(7)	SEXUAL BATTERY (School Authority figure) (V: M.F.; Feb. 1, 2006 – April 30, 2006)	Felony 3rd Degree
3	2907.03(A)(7)	SEXUAL BATTERY (School Authority figure) (V: J.R.; August 1, 2007 – December 31, 2007)	Felony 3rd Degree

The Court finds that there are separate victims on each count. Accordingly, the offenses do not constitute allied offenses of similar import.

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Sentencing and Findings

The Court asked the Defendant and Defendant's attorney if there was any reason why the case should not proceed to sentencing. Defendant's attorney informed the Court there was no reason to delay sentencing.

The State recited the plea agreement for the record. No Victims appeared though notified.

Defendant was asked if there was anything Defendant wanted to say on Defendant's own behalf and/or that would pertain to sentencing and mitigation of punishment. The Defendant did make a statement.

The Court has considered the record, Defense counsel's oral statements, Defendant's oral statements, the underlying agreement recited on the record, the State's Sentencing Memorandum, Defendant's record, the presentence investigation report, and other relevant information.

The Court also considered and is guided by the principles and purposes of sentencing under Ohio Revised Code Section 2929.11.

Further, the Court considered and is guided by the seriousness and recidivism factors under Ohio Revised Code Section 2929.12(B)-(F), and the need for deterrence, incapacitation, rehabilitation and restitution.

The Court finds as set forth in ORC 2929.12(B), that the Victims' injury was exacerbated by the Victims' age. (B)(1). Further, the Defendant held a position of trust and the offense related to that trust. (B)(3). Further, the Defendant's occupation and profession was used to facilitate the offense and Defendant was obliged to prevent the offense and report others so engaged in the offense. (B)(4)(5). The Defendant's relationship with the Victims facilitated the offense. (B)(6)

The Court finds that the Defendant shows genuine remorse. ORC 2929.12(E)(5). Further, the Defendant has no prior convictions. (E)(2).

Further, the Court finds that the Defendant is not presently amenable to an available community control sanction.

The Defendant has entered an agreed guilty plea with a recommended sentence.

The Court finds that the agreed sentence complies with the statutory mandates as to sentencing and accepts the sentence.

Accordingly, after consideration of all of the above, the Court finds that a prison term is consistent with the purposes and principles of sentencing set forth in the Ohio Revised Code Section 2929.11.

Therefore, it is the Order and Judgment of this Court that the Defendant shall be **sentenced** to the Ohio Department of Rehabilitation and Correction for a period of thirty (30) months on Count 2 for SEXUAL BATTERY, a violation of Section 2907.03(A)(7) of the Ohio Revised Code which is a Felony 3rd Degree; and shall be **sentenced** to the Ohio Department of Rehabilitation and Correction for a period of thirty (30) months on Count 3, a violation of Section 2907.03(A)(7) of the Ohio Revised Code which is a Felony 3rd Degree.

These sentences shall be served consecutively to each other and to the sentences imposed in Case 23 CR 145. Stated term: one hundred twenty (120) months.

It is further Ordered that the Defendant receive **credit for jail time served** in the amount of one (1) days to Count Two only as of September 5, 2024.

Defendant was informed that Defendant is not eligible for early release.

Consecutive Sentences

The Court finds that consecutive sentences are necessary to protect the public from future crime and to punish the offender. Consecutive sentences are not disproportionate to the seriousness of the offender's conduct nor are they disproportionate to the danger the offender poses to the public. Further, at least two of these offenses were part of one or more course of conduct and the harm caused was so great or unusual that no single term adequately reflects the seriousness of the offender's conduct. Ohio Revised Code 2929.14(C).

Post Release Control

The Defendant was further advised that, upon release from prison, Defendant shall be placed on post release control by the Ohio Adult Parole Authority, for a **MANDATORY TERM** of five years.

Defendant was advised that, while on post release control, a violation of the terms of post release control could result in Defendant being returned to prison for up to nine months on each violation, with the maximum for repeated violations being one-half (50%) of the stated prison term. Defendant was further advised that if, while on Post Release Control, Defendant is convicted of a new felony, the sentencing court may terminate the term of post release control and impose a prison term for the violation of post release control. The maximum prison term for the post release control violation shall be the greater of twelve months or the

period of post release control Defendant is under minus any time already spent on post release control. This term of prison shall be served consecutively to any prison term imposed for the case for which Defendant is convicted. The Parole Board is requested by the Court to monitor Defendant for drug usage until drug free on a regular basis for six months after release from prison and to provide substance abuse treatment.

Financial Sanctions and Costs

It is Ordered that the Defendant has agreed to and shall pay all costs of prosecution for which judgment is rendered and execution may issue.

After discussion with the Defendant, the Court finds the Defendant has a college education and. Therefore, the Court finds the Defendant possesses the future ability to pay the financial sanctions.

Sex Offender Notification Obligations

The Gallia County Sheriff is Ordered to obtain and assemble the following items: Defendant's photograph; Defendant's fingerprints; and Defendant's criminal history. As an attachment to this entry, the Court is providing to the Gallia County Sheriff two copies of the Defendant's executed "Explanation of Duties to Register as a Sex Offender" form. One copy is for the Gallia County Sheriff's files as the Sheriff in the county in which the Defendant plead guilty and was convicted. §2950.03(B)(3)(a). The second copy is a copy which must be sent to the Ohio Bureau of Criminal Identification and Investigation as provided in §2950.03(B)(3)(a). The Gallia County Sheriff is Ordered to send all of the above items to the Ohio Bureau of Criminal Identification and Investigation. This notification to BCI&I will satisfy any obligation as set forth in Ohio Revised Code §2950.03(B)(3)(a) and (C).

Duty to Report

Defendant was advised the crime of which Defendant is convicted is a sexually oriented offense pursuant to 2950.01(A)(1) of the Ohio Revised Code. "Sex Offender" is defined as a person who is convicted of or pleads guilty to any sexually oriented offense. *Id.* Defendant was advised that Defendant's conviction of this crime requires that Defendant be classified as a "**Tier Three and Tier Two Sex Offender**" with continuing registration and verification requirements at intervals. Defendant was advised that the Sheriff is required to notify victims, neighborhoods, schools, churches and other institutions of Defendant's name, address and offenses. Further, Defendant was advised that Defendant may not reside within one thousand feet of the premises of any school, preschool or daycare facility. The Court read to the Defendant each section of the form "Explanation of Duties to Register as a Sex Offender or Child Victim Offender." The Court inquired whether Defendant had any questions about the terms of the document and the Defendant answered that Defendant did not. Defendant signed the "Explanation of Duties" in court.

Bond

It is hereby Ordered that any bond not already forfeited, heretofore posted is released after all fines, costs, and payments required or permitted by law are fully satisfied, unless it shall have been posted by a person other than the Defendant, in which instance, said bond shall be released to such person, less any payments or charges required or permitted by law, due and owing to the Clerk of Courts.

Order to Convey

The Gallia County Sheriff is Ordered to convey the Defendant to the appropriate Ohio Department of Rehabilitation and Corrections facility immediately.

Remand

The Defendant is remanded to the custody of the Gallia County Sheriff to await transport.

Remaining Counts Dismissed

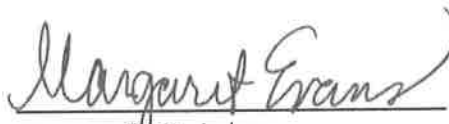
The State moved to dismiss the remaining counts in the indictment. Dismissal of the other counts is granted.

Appeal

The Defendant was advised that Defendant has a right to appeal this matter. The Court advised the Defendant that any appeal would need to be filed within thirty (30) days after the filing of the Court's sentencing entry. The Defendant was advised if Defendant is unable to pay the cost of an appeal, Defendant has the right to have a notice of appeal filed without the payment of a filing fee, upon Defendant's completion of the appropriate application. Defendant was further advised that if Defendant cannot pay the cost of a transcript, the record and all relevant documents necessary for an appeal, they will be provided without cost, upon Defendant's completion of the appropriate application. Defendant was advised that if Defendant is unable to pay to obtain counsel for an appeal, Defendant may request and have counsel appointed for an appeal without cost, upon the completion of the appropriate application.

SO ORDERED.




Margaret Evans, Judge

The Clerk is directed to furnish a copy of the foregoing to Mark R. Weaver, Special Prosecuting Attorney; Victim if registered and requested; Attorney Britt T. Wiseman; Adult Probation Department; Defendant Michal Paige Huck; Gallia County Sheriff's Office; Ohio Reformatory for Women, 1479 Collins Avenue, Marysville, Ohio 43040; and Bureau of Sentencing Computation, P.O. Box 2650, Columbus, Ohio 43216.

Explanation of Duties to Register as a Sex Offender or Child Victim Offender
Duties commencing on or after January 1, 2008 (ORC 2950.04 or 2950.041)

DRC# _____ Registration# _____ SSN# [REDACTED] - 2666
County of Conviction Gallia Court Case# 23 CR 145 and 24 CR 122
Conviction ORC#(s) 2907.04(A)(B)(3); 2907.04(A)(B)(3); 2907.03(A)(7); 2907.03(A)(7)
Name Huck Michael Palge
(Last) (First) (Middle)
Expected Residence Address 1522 St Rt 7 North Gallipolis
(Street) (City)
OH 45631 740 446-0684
(State) (Zip) (Phone)

1. You have been convicted of or pleaded guilty to a sexually oriented offense and or child victim offense as defined in ORC 2950.01 and you are one of the following (CHECK BOX, CIRCLE EITHER SEX OFFENDER OR CHILD VICTIM OFFENDER):

- ☐ TIER I Sex Offender/Child Victim Offender Registrant
☒ TIER II Sex Offender/Child Victim Offender Registrant
☐ Subject to Community Notification (applies to registrants previously subject to requirement)
☒ TIER III Sex Offender/Child Victim Offender Registrant
☐ Not Subject to Community Notification pursuant to ORC 2950.11(F)(2)

2. You are required to register, in person, with the sheriff of the county in which you establish residency within 3 days of coming into that county, or if temporarily domiciled for more than 3 days. You are also required to register, in person, with the sheriff of the county in which you establish a place of education immediately upon coming into that county. If you establish a place of education in another state but maintain a residence or temporary domicile here, you are also required to register, in person, with the sheriff or other appropriate official in that other state immediately upon coming into that state. You are also required to register, in person, with the sheriff of the county in which you establish a place of employment if you have been employed for more than 3 days or for an aggregate of 14 days in a calendar year. If you establish a place of employment in another state but maintain a residence or temporary domicile here, you are also required to register, in person, with the sheriff or other appropriate official in that other state if you have been employed for more than 3 days or for an aggregate of 14 days in a calendar year. Employment includes volunteer services.
3. You are required to provide to the sheriff temporary lodging information, including address and length of stay, if your absence will be for 7 days or more.
4. After the date of initial registration, you are required to periodically verify your residence address, place of employment and/or place of education, in person, at the county sheriff's office no earlier than 10 days prior to your verification date.
5. If you change residence address, place of employment and/or place of education, you shall provide written notice of that change to the sheriff with whom you most recently registered, and to the sheriff in the county in which you intend to reside, or establish a place of employment and/or place of education at least 20 days prior to any change and no later than 3 days after change of employment. If the residence address change is not to a fixed address, you shall include a detailed description of the place or places you intend to stay and no later than the end of the first business day immediately following the day you obtain a fixed address, you must register with the sheriff that fixed address.
6. You are further advised, in accordance with Federal Law, you must report any international travel to your registering authority no later than 21 days prior to travel. Failure to do so may subject you to criminal prosecution.
7. You shall provide written notice, within 3 days, of any change in vehicle information, email addresses, Internet identifiers or telephone numbers registered to or used by you, to the sheriff with whom you have most recently registered.
8. DEPENDING UPON YOUR DESIGNATION, YOU ARE REQUIRED TO COMPLY WITH ALL OF THE ABOVE-DESCRIBED REQUIREMENTS FOR THE FOLLOWING PERIOD OF TIME AND FREQUENCY (CHECK ONE):

- ☐ TIER I - for a period of 15 years with in-person verification annually.
☒ TIER II - for a period of 25 years with in-person verification every 180 days.
☒ TIER III - for your lifetime with in-person verification every 90 days.

9. Since your expected residence address as stated above is located in _____ County, you shall register in person no later than _____ (Date) (3 days after release) with that County Sheriff's Office located at:

(Street Address) _____ (City/State) _____ (Zip) _____

10. Failure to register, failure to verify residence at the specified times or failure to provide notice of a change in residence address or other required information as described above will result in criminal prosecution.

11. I acknowledge that the above requirements have been explained to me and that I must abide by all of the provisions of the Ohio Revised Code Chapter 2950.

Michael R. Huck
Offender's Signature

9/5/24
Date

12. I certify that I specifically informed the offender of their duties as set forth above and they indicated to me an understanding of those duties.

Margaret Evans Judge, Gallia Co. C.P. General
Signature of Official Title & Agency

9/5/2024
Date

Margaret Evans Judge, Gallia Co. C.P. General
Print Official's Name Print Title & Agency

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COMMON PLEAS COURT